



Supreme Court *Chronicle*



Issue XXV | November 2025 (Covering Events of October 2025)

Highlights

- *Engagements on the Official Visit to Bhutan*
- *Engagements on the Official Visit to Mauritius*
- *Engagements on the Official Visit to Sri Lanka*
- *National Annual Stakeholders Consultation on 'Safeguarding The Girl Child: Towards a Safer And Enabling Environment For Her In India'*
- *The National Legal Services Authority (NALSA) East-Zone Regional Conference*





Message from the Secretary General

Dear Readers,

I am pleased to present the latest edition of the Supreme Court Chronicle. This edition captures the Court's significant activities, collaborations, and its enduring commitment to strengthening and reforming the judiciary and beyond.

This edition includes the official visit of the Chief Justice of India to Bhutan. The visit reflected India's growing role in promoting international judicial cooperation and commitment. The series of interactions held during the visit opened new avenues for partnership in knowledge sharing.

This edition further covers the visit of the Chief Justice of India to Mauritius at the invitation of the Chief Justice of Mauritius. The visit comprised meaningful exchanges with Mauritius's judiciary and government, aimed at developing judicial capacities, and strengthening cooperation in areas of common interest.

This edition also covers the official visit of Justice Surya Kant to Sri Lanka, marking another milestone in our judicial diplomacy. The visit facilitated a productive exchange of legal insights, further cementing the fraternal bonds between the judiciaries of the two nations.

A key feature in this edition is the National Annual Stakeholders Consultation on 'Safeguarding the Girl Child: Towards a Safer And Enabling Environment for Her in India', which served as a platform bringing together diverse stakeholders to deliberate on strengthening protective mechanisms and promoting environments that ensure dignity, opportunity, and safety for every girl child.

This edition also includes the National Legal Services Authority (NALSA) *East-Zone Regional Conference*, which served as a crucial forum for reinforcing the judiciary's commitment to ensuring that justice remains accessible to the most vulnerable.

I hope that the events and insights reflected in this edition provide you with knowledge, inspiration and understanding of the judiciary and its mission.

Shekhar C Munghate
Secretary General
Supreme Court of India

Editorial Team

Board of Editors

Dr Anurag Bhaskar
Anshuka Bhandari
Basima P
Jemima B S
Sahil Rathee
Sneha Shrivastav
Srishti Bharti
Vrishti Shami
Z Zakhar Naved

Designed by

Mohd Shafiqullah Arzoo
Md Hasamtullah Ansari
Design Team
Editorial
Supreme Court of India

Published by

Centre for Research and Planning (CRP)
Supreme Court of India
New Delhi-110001

Website

<https://www.sci.gov.in/supreme-court-chronicle/>

© Supreme Court of India, 2025

All rights are reserved

Contents

1.	Global Engagements
2.	National Engagements
3.	Legal Aid
4.	Bar News Bulletin
5.	Fresh from the Bench
6.	Training Hub
7.	Bid Adieu

Global Engagements

Engagements on the Official Visit to Bhutan



23 October 2025: Justice B R Gavai, Chief Justice of India, with Justice Norbu Tshering, Chief Justice of Bhutan, and other Judges of the Supreme Court of Bhutan

On the invitation of Justice Lyonpo Norbu Tshering, Chief Justice of Bhutan, Justice B R Gavai, Chief Justice of India, visited Bhutan from 22 to 26 October, 2025 for participating in various events organised by the Supreme Court of Bhutan. He discussed ways to enhance mutual commitment and relationship between the two nations, and discussed various initiatives and collaborative projects strengthening India-Bhutan cooperation. He assured India's cooperation and assistance for Bhutan's judiciary in the areas of technology integration, capacity building and knowledge exchange. In this regard, he also announced two law clerk positions in the Supreme Court of India to Bhutanese law graduates annually to promote professional learning and nurture cross-border legal understanding.



23 October 2025: Justice B R Gavai, Chief Justice of India, addressed the students and faculty of Jigme Singye Wangchuck (JSW) School of Law, at the fifth "Wisdom for Future" Talk Series

In his address at the fifth “Wisdom for Future” Talk Series, hosted by the Jigme Singye Wangchuck (JSW) School of Law, on the topic “Courts and Constitutional Governance”, Justice B R Gavai observed, *“The judiciary stands as both a guardian and a moral conscience of the Constitution. Its role*

goes beyond interpretation; it embodies the living spirit of constitutionalism by maintaining the delicate balance among the organs of the State”. The occasion was graced by the presence of Her Royal Highness Princess Sonam Dechen Wangchuck and Justice Norbu Tshering, Chief Justice of Bhutan.



23 October 2025: Justice B R Gavai, Chief Justice of India, with Her Royal Highness Princess Sonam Dechen Wangchuck and Justice Lyonpo Norbu Tshering, Chief Justice of Bhutan



*24 October 2025:
During the official visit to Bhutan, Justice B R Gavai, Chief Justice of India, had a meeting with the Prime Minister of Bhutan, Dashi Tshering Tobgay*



22–26 October 2025: Justice B R Gavai, Chief Justice of India, with Justice Lyonpo Norbu Tshering, Chief Justice of Bhutan

Engagements on the Official visit to Mauritius



*2–4 October 2025:
On the invitations of Justice
B R Mungly-Gulbul, GOSK,
Chief Justice of Mauritius, and
the Attorney General of Mauritius,
Justice B R Gavai, Chief Justice
of India, made an official visit
to Mauritius and participated in
various events*

*2 October 2025: During the visit,
Justice B R Gavai, Chief Justice of
India, visited Mahatma Gandhi
Institute (MGI) in Mauritius,
and participated in the Gandhi
Jayanti celebrations and paid
floral tributes to the Father of the
Nation on his birth anniversary*



*Justice B R Gavai, Chief Justice
of India, had a meeting with Mr
Dharambeer Gokhool, President
of Mauritius, where they discussed
the strong judicial cooperation
and long standing educational ties
between the two countries*



Justice B R Gavai, Chief Justice of India with Dr Navinchandra Ramgoolam, Prime Minister of Mauritius. During the meeting, the Chief Justice highlighted the warm, people-to-people bonds that drive the enduring ties between the two nations

Justice B R Gavai, Chief Justice of India, had a meeting with Paul Raymond Berenger, Deputy Prime Minister of Mauritius, and the discussions centered on the historically strong bonds of friendship between India and Mauritius



3 October 2025: During the visit, Justice B R Gavai, Chief Justice of India, addressed the Mauritian judiciary, the Bar and the legal fraternity on the occasion of "Inaugural Sir Maurice Rault Memorial Lecture 2025", dedicated to Sir Maurice Rault Q C, who was the Head of the Mauritian Judiciary from 1978 to 1982, organised by the Mauritius Bar Association in collaboration with the Office of the Attorney General of Mauritius

Engagements on the Official Visit to Sri Lanka



22–25 October 2025: Justice Surya Kant, Judge, Supreme Court of India, visited Sri Lanka on the invitations of Justice P Padman Surasena, Chief Justice of Sri Lanka, Mr Rajeev Amarasuriya, President of the Bar Association of Sri Lanka and the University of Colombo, Sri Lanka, and participated in various events

During the visit, Justice Surya Kant participated in an event “Indo-Sri Lanka Policy Dialogue: Advancing Environmental Sustainability and Regional Cooperation” organised jointly by the Commonwealth Legal Education Association (CLEA) and the Faculty of Law, University of Colombo on 22 October 2025.

On 23 October 2025, Justice Surya Kant delivered the Inaugural, at the Bar Association of Sri Lanka Human Rights Oration, on the topic “Strengthening a Legal Aid System to Achieve Human Rights of Marginalised and Minorities: the Indian Case Study”.

Justice Surya Kant also delivered a Keynote Speech at the Inaugural Ceremony of the 29th Edition of the National Law Conference, on 24 October 2025.

VI Congress of the World Conference of Constitutional Justice (WCCJ) – Spain



28–31 October 2025:
Justice M M Sundresh, Justice Atul S Chandurkar, Judges, Supreme Court of India, and Justice Makarand Subhash Karnik, Judge, High Court of Bombay, attended the VI Congress of the World Conference of Constitutional Justice (WCCJ) under the theme “Human Rights of Future Generations”, organised by the WCCJ and the Constitutional Court of Spain, in Madrid, Spain



28 October 2025:
Justice M M Sundresh, Justice Atul S Chandurkar, Judges, Supreme Court of India, and Justice Makarand Subhash Karnik, Judge, High Court of Bombay, at the meetings of the regional and linguistic groups of the World Conference on Constitutional Justice (WCCJ)

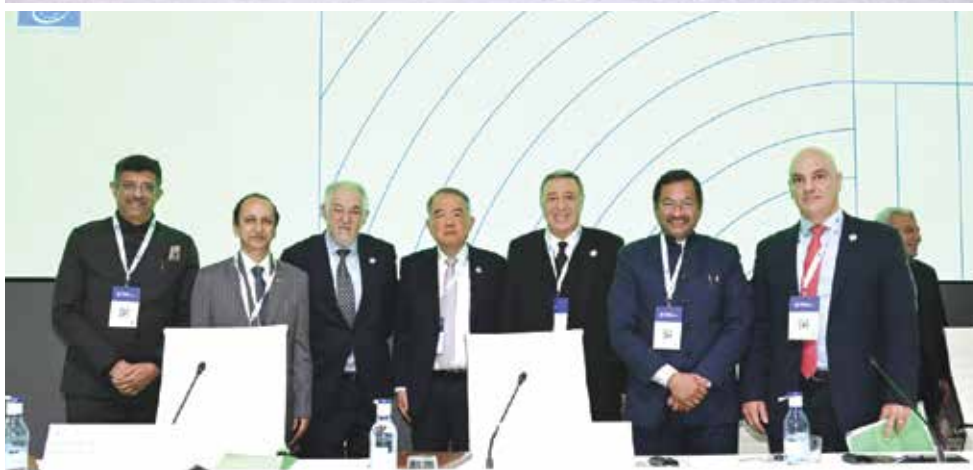




*30 October 2025:
Justice M M Sundresh, Judge,
Supreme Court of India,
participated as Speaker in
Session 'D' under the theme
"Independence of Constitutional
Courts"*



*30 October 2025:
Justice M M Sundresh,
Justice Atul S
Chandurkar, Judges,
Supreme Court of India,
and Justice Makarand
Subhash Karnik, Judge,
High Court of Bombay,
at the Working Sessions
of the VI Congress of the
World Conference on
Constitutional Justice
(WCCJ)*





31 October 2025: Justice M M Sundresh, Justice Atul S Chandurkar, Judges, Supreme Court of India, and Justice Makarand Subhash Karnik, Judge, High Court of Bombay, attended Cultural Programmes organised during the VI Congress of the World Conference on Constitutional Justice (WCCJ)

2025 World Intellectual Property Organization (WIPO) Intellectual Property Judges Forum – Switzerland



14–15 October 2025: Justice Satish Chandra Sharma, Judge, Supreme Court of India, participated as a Speaker at the “2025 World Intellectual Property Organization (WIPO) Intellectual Property Judges Forum” organised by the WIPO at the Headquarters of the WIPO in Geneva, Switzerland

National Engagements

Recommendation of Justice Surya Kant as the 53rd Chief Justice of India



27 October 2025: Justice B R Gavai, Chief Justice of India, proposed to the Union Government the name of Justice Surya Kant, the second senior-most Judge of the Supreme Court, for appointment as the next Chief Justice of India

Gandhi Jayanti and Lal Bahadur Shastri Jayanti





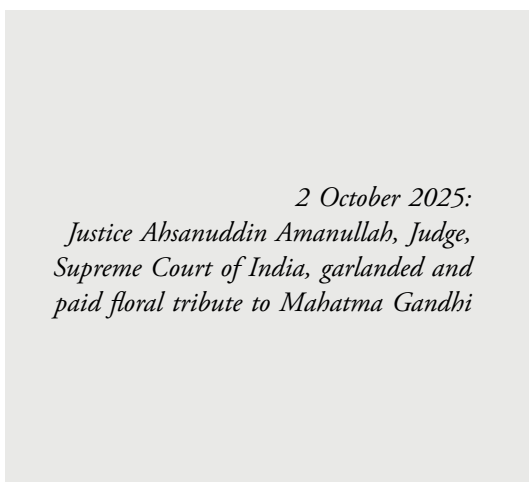
2 October 2025: Justice Surya Kant, Justice Ahsanuddin Amanullah, Justice K V Viswanathan, and Justice N Kotiswar Singh, Judges, Supreme Court of India, paid tributes to Mahatma Gandhi and Lal Bahadur Shastri, former Prime Minister of India. The occasion witnessed a cleanliness drive and the garlanding of Mahatma Gandhi's statue and photograph of Shri Lal Bahadur Shastri in the Supreme Court compound



2 October 2025: Justice Surya Kant, Judge, Supreme Court of India, addressed the gathering on the occasion of Gandhi Jayanti and Lal Bahadur Shastri Jayanti



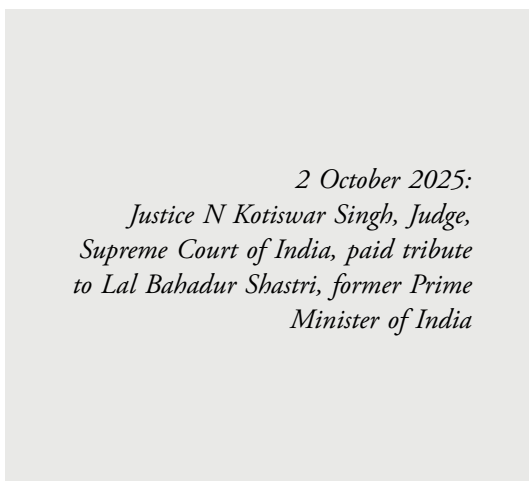
*2 October 2025:
Justice Surya Kant, Judge, Supreme Court
of India, garlanded and paid floral tribute
to Mahatma Gandhi*



*2 October 2025:
Justice Ahsanuddin Amanullah, Judge,
Supreme Court of India, garlanded and
paid floral tribute to Mahatma Gandhi*



*2 October 2025:
Justice K V Viswanathan, Judge,
Supreme Court of India, paid tribute
to Lal Bahadur Shastri, former Prime
Minister of India*



*2 October 2025:
Justice N Kotiswar Singh, Judge,
Supreme Court of India, paid tribute
to Lal Bahadur Shastri, former Prime
Minister of India*



Visit by Foreign Dignitaries



9 October 2025: The Ambassadors/Deputy Ambassadors from Panama, Venezuela, Ireland, Denmark, Romania, Serbia, Switzerland, Japan, Colombia, Slovakia, Czech Republic, Uruguay, Iceland, Jamaica, Italy, visited the Supreme Court of India. During the visit, the foreign dignitaries met with Justice B R Gavai, Chief Justice of India; visited National Judicial Museum and Archive and the Judges' Library; visited War Room and was briefed about the e-initiatives taken by the Supreme Court of India

National Annual Stakeholders Consultation on ‘Safeguarding The Girl Child: Towards a Safer And Enabling Environment For Her In India’



11 October 2025: Justice B R Gavai, Chief Justice of India; Smt Annapurna Devi, Union Minister of Women and Child Development; Justice B V Nagarathna, Chairperson, Juvenile Justice Committee and Judge, Supreme Court of India and Justice J B Pardiwala, Member, Juvenile Justice Committee and Judge, Supreme Court of India; and Ms Cynthia McCaffrey, Country Representative, UNICEF India at the Inaugural Session of the National Annual Stakeholders Consultation

The Juvenile Justice Committee of the Supreme Court of India hosted its 10th National Annual Stakeholders Consultation on 11 and 12 October, 2025, in association with UNICEF India. Titled ‘Safeguarding The Girl Child: Towards a Safer And Enabling Environment For Her In India’, the event was inaugurated by Justice B R Gavai, Chief Justice of India. The consultation was led by the Juvenile Justice Committee Chairperson, Justice B V Nagarathna, and Member, Justice J B Pardiwala. The event convened senior representatives, including the Minister of Women and Child Development,

High Court Judges, and key officials from state and Union government departments.

The Consultation featured four technical sessions on: (i) the right of every girl to be born, nurtured, and educated; (ii) safeguarding the girl child from cybercrimes; (iii) protecting her from abuse, exploitation, and violence; and (iv) the implementation of the POCSO Act, 2012. The consultation reaffirmed the shared national priority of protecting and empowering every girl child as fundamental to India’s inclusive development.



11 October 2025: Justice B R Gavai, Chief Justice of India, Justice B V Nagarathna, Justice J B Pardiwala, Justice N V Anjaria, Justice Alok Aradhe, Justice Vipul Manubhai Pancholi, Judges, Supreme Court of India, together with the Judges of the various High Courts, UNICEF representatives, and senior officials from the Judiciary, Police, Health, Education, and Women & Child Development Departments across all States and Union Territories

During the event, a publication titled 'Handbook on Child Rights and the Law' was also released. It was prepared by the Centre for Research and Planning (CRP), Supreme Court of India under the guidance of the Juvenile Justice Committee

of the Supreme Court of India. This Handbook brings together, in one accessible volume, the wide-ranging laws, judicial decisions, and administrative mechanisms that form the backbone of India's child protection framework.



11 October 2025: Justice J B Pardiwala, Member, Juvenile Justice Committee and Judge of the Supreme Court of India released the 'Handbook on Child Rights and the Law' during the Inaugural Session of the 10th National Annual Stakeholders Consultation, in presence of Justice B R Gavai, Chief Justice of India; Smt Annapurna Devi, Minister of Women and Child Development; Justice B V Nagarathna, Chairperson, Juvenile Justice Committee and Judge, Supreme Court of India; and Ms Cynthia McCaffrey, Country Representative, UNICEF India



*11 October 2025:
Justice B R Gavai, Chief Justice
of India, addressed the Inaugural
Session of the 10th National Annual
Stakeholders Consultation*



11 October 2025: Justice B V Nagarathna, Chairperson, Juvenile Justice Committee and Judge, Supreme Court of India, addressed the National Annual Stakeholders Consultation, in which she noted that the National Consultation has become a key platform to reflect on the progress, challenges, and opportunities

*11 October 2025:
Justice J B Pardiwala, Member, Juvenile Justice
Committee and Judge, Supreme Court of India, at
the National Annual Stakeholders Consultation.
During his Special Address at the closing ceremony,
Justice J B Pardiwala emphasised that policy responses
must be grounded in empirical evidence, informed
by data and field studies that reflect the actual
implementation and impact of laws at the ground
level—rather than being shaped solely by perceptions
or assumptions*



Convocation



*18 October 2025:
Justice Vikram Nath, Judge, Supreme Court of India, graced the Fourth Convocation Ceremony, 2025, of Maharashtra National Law University, Chhatrapati Sambhaji Nagar, as the Chief Guest, and delivered the Convocation Address*

Public Events, Speeches and Other Engagements



*13 October 2025:
Justice B R Gavai, Chief Justice of India, interacted with the Harvard Community and Alumni from Harvard Club of India*





11 October 2025: Justice Vikram Nath, Justice M M Sundresh, Justice P S Narasimha, Justice K V Viswanathan, Justice R Mahadevan, Judges, Supreme Court of India, attended the function organised by the Bar Council of Tamil Nadu & Puducherry at Chennai, to commemorate the Platinum Jubilee of practice (75 years at the Bar) and Golden Jubilee as Senior Advocate (50 years) of Padma Vibhushan Shri K Parasaran, Senior Advocate and former Attorney General for India



11 October 2025: Justice Vikram Nath, Judge, Supreme Court of India, delivered the Presidential Address at the function organised by the Bar Council of Tamil Nadu & Puducherry at Chennai, as Chief Guest, to commemorate the Platinum Jubilee of practice (75 years at the Bar) and Golden Jubilee as Senior Advocate (50 years) of Padma Vibhushan Shri K Parasaran, Senior Advocate and former Attorney General for India



11 October 2025: Justice P S Narasimha, Judge, Supreme Court of India, delivered an address at the function organised by the Bar Council of Tamil Nadu & Puducherry at Chennai, to commemorate the Platinum Jubilee of practice (75 years at the Bar) and Golden Jubilee as Senior Advocate (50 years) of Padma Vibhushan Shri K Parasaran, Senior Advocate and former Attorney General for India



11 October 2025: Justice K V Viswanathan, Judge, Supreme Court of India, delivered an address at the function organised by the Bar Council of Tamil Nadu & Puducherry at Chennai, to commemorate the Platinum Jubilee of practice (75 years at the Bar) and Golden Jubilee as Senior Advocate (50 years) of Padma Vibhushan Shri K Parasaran, Senior Advocate and former Attorney General for India



11 October 2025: Shri Dr Mohan Yadav, Chief Minister of Rajasthan; Justice J K Maheshwari, Justice Ahsanuddin Amanullah, Justice Rajesh Bindal, and Justice Aravind Kumar, Judges, Supreme Court of India; Justice Sanjeev Sachdeva, Chief Justice, High Court of Madhya Pradesh, at the Inauguration of Colloquium on the theme of “Evolving Horizons: Navigating Complexity & Innovation in Commercial & Arbitration Law in Digital World” at Brilliant Convention Centre, Indore, organised by Madhya Pradesh High Court and Madhya Pradesh Judicial Academy, in collaboration with Danish Patent and Trademark Office (DKPTO)



*11–12 October 2025:
Justice Atul S Chandurkar, Judge,
Supreme Court of India, chaired
the “Technical Session – 3 : Fair
and Equal Competition in Online
Commerce”, organised as part of the
Colloquium “Evolving Horizons :
Navigating Complexity & Innovation
in Commercial & Arbitration Law
in Digital World”, by the Madhya
Pradesh State Judicial Academy in
collaboration with the Danish Patent
and Trademark Office (DKPTO)*



*18 October 2025: Justice M M Sundresh, Judge, Supreme Court of India, attended the Golden Jubilee Celebrations of
Advocates of the Erode Bar Association, at Vellalar College for Women, Erode, Tamil Nadu*



12 October 2025: Justice Rajesh Bindal, Judge, Supreme Court of India, chaired “Session 4: Appreciation of Digital Evidence in the AI Ecosystem” and “Session 5: Safeguarding Judicial Institutions from Cyber Attacks”, in a Two Day Conference for High Court Justices on Cyber Law & AI, organised by National Judicial Academy at Bhopal





12 October 2025: Justice Ahsanuddin Amanullah, Judge, Supreme Court of India, attended a day-long State Level Workshop on “Strategising and Monitoring Outreach and Awareness at the Grassroots Level” and delivered an address on “Legal Aid as a Constitutional Right: Vision for Rajasthan” at Jaipur, organised by the Rajasthan State Legal Services Authority



10–11 October 2025: Justice Prasanna B Varale, Judge, Supreme Court of India, attended as the Chief Guest the Conference on the theme “Organ Donation in India” by Indian Society of Organ Transplantation

8 October 2025:
Justice N Kotiswar Singh, Judge, Supreme
Court of India, presided as Chief Guest at
“Justitia 2025” in Centre for Legal Studies,
Gitarattan International Business School
(GIBS), Delhi



25 October 2025:
Justice N Kotiswar Singh,
Judge, Supreme Court
of India, attended as
a Distinguished Guest,
the Inauguration of the
Ramakrishna Mission
Vidyapith Agriculture
College, Purulia





31 October 2025: Justice Manmohan, Judge, Supreme Court of India, along with Shri Arjun Ram Meghwal, Union Minister of State (Independent Charge) of the Ministry of Law and Justice, at the 4th Arbitration in India Conclave 2025, held at the India International Centre, New Delhi

Voluntary Blood Donation Drive at the Supreme Court of India



*8 October 2025:
A Voluntary Blood Donation Drive was organised by the Supreme Court of India, in collaboration with Blood Centre, AIIMS, New Delhi, at the Administrative Buildings Complex, Supreme Court of India*

Legal Aid

The National Legal Services Authority (NALSA) East-Zone Regional Conference



11–12 October 2025: Justice Surya Kant, Judge, Supreme Court of India, in the presence of Shri Dr Himanta Biswa Sarma, Chief Minister of Assam, Shri Arjun Ram Meghwal, Union Minister of State (Independent Charge) of the Ministry of Law and Justice, and Justice Ashutosh Kumar, Chief Justice, High Court of Gauhati, presided over “The National Legal Services Authority East-Zone Regional Conference, Guwahati”, of the Seven North-Eastern States and Sikkim, Bihar, West Bengal, Jharkhand and Odisha, at Guwahati



11–12 October 2025: Justice Surya Kant, Judge, Supreme Court of India, in the presence of Shri Dr Himanta Biswa Sarma, Chief Minister of Assam, Shri Arjun Ram Meghwal, Union Minister of State (Independent Charge) of the Ministry of Law and Justice, and Justice Ashutosh Kumar, Chief Justice, High Court of Gauhati, virtually inaugurated Legal Services Clinics in 46 Tea Estates in Assam



11 October 2025: Justice Surya Kant, Justice Dipankar Datta, Justice Prashant Kumar Mishra, Justice Ujjal Bhuyan, Justice Sandeep Mehta, Justice N Kotiswar Singh, Justice Joymalya Bagchi, Judges, Supreme Court of India, attended the Inaugural Session of “The National Legal Services Authority East-Zone Regional Conference, Guwahati”, of the Seven North-Eastern States and Sikkim, Bihar, West Bengal, Jharkhand and Odisha, at Guwahati



12 October 2025: Justice Vikram Nath, Judge, Supreme Court of India, graced and addressed the Valedictory Session of the East-Zone Regional Conference of the Seven North-Eastern States, Sikkim, Bihar, West Bengal, Jharkhand and Odisha, organised jointly by the Assam State Legal Services Authority, the Gauhati High Court and the National Legal Services Authority

Mega Legal Services Camp, Mandi (Himachal Pradesh)



18 October 2025: Justice Surya Kant, Judge, Supreme Court of India, along with Justice Gurmeet Singh Sandhawalia, Chief Justice, High Court of Himachal Pradesh and Justice Vivek Singh Thakur, Judge, High Court of Himachal Pradesh, attended the Mega Legal Services Camp, organised by District Legal Services Authority, Mandi, at Paddal Ground, Mandi, Himachal Pradesh

Bar News Bulletin



29 October 2025:

Justice Abhay S Oka, former Judge, Supreme Court of India, delivered a lecture as part of the SCBA Lecture Series in the presence of Justice Ujjal Bhuyan and Justice Joymalya Bagchi, Judges, Supreme Court of India and Senior Advocate Vikas Singh, President, Supreme Court Bar Association

The Supreme Court Bar Association (SCBA) regularly features insightful legal discourse through its distinguished Lecture Series. The latest instalment featured an insightful address by Justice Abhay S Oka, former Judge, Supreme Court of India, who delivered a seminal lecture titled, *“Clean Air, Climate Justice and We – Together for a Sustainable Future”*.

Justice Oka’s address centred on the constitutional and moral imperatives of environmental protection, empathetically arguing that the Right to Life includes the right to a pollution-free environment. His core thesis challenged the widespread practice of excusing environmental destruction and animal cruelty under the guise of religious freedom or economic development, urging both the State and citizens to fulfil their fundamental duties to protect the planet.

Justice Oka initiated his lecture by framing environmental protection as a matter of constitutional rights and justice. He argued that when the environment is degraded, it represents a grave violation of the guarantee of social justice outlined in the Preamble. This is especially true because environmental harm disproportionately



29 October 2025: Justice Abhay S Oka, former Judge, Supreme Court of India, delivered a lecture on the topic *“Clean Air, Climate Justice, and We — Together for a Sustainable Future”* as part of the SCBA Lecture Series

affects the poor and marginalised, who lack the means to escape polluted air and water.

Justice Oka further defined the judiciary’s role as crucial, calling for a zero-tolerance approach to the violation of environmental laws. He concluded by urging a redefinition of “development” to ensure it aligns with the constitutional mandate of environmental protection rather than being constantly “balanced” against it.

Fresh from the Bench

Rejanish K V v K Deepa and Others (2025 INSC 1208)

“If the appointment to the district judges cadre is to be made directly for the purpose of enhancing the efficiency of the district judiciary, any interpretation that restricts the competition and prohibits the otherwise meritorious candidates from the zone of consideration will have to be eschewed”

CORAM: Chief Justice B R Gavai, Justice M M Sundresh, Justice Aravind Kumar, Justice Satish Chandra Sharma and Justice K Vinod Chandran

In a judgment delivered on **October 9, 2025**, the Supreme Court has altered the eligibility criteria for the post of District Judge. Overruling its 2020 decision in *Dheeraj Mor v High Court of Delhi*, the Court held that in-service Judicial Officers (like Civil Judges) are eligible to compete for the 25% “direct recruitment” quota, which was previously considered to be the exclusive domain of practising advocates.

The Constitution Bench delivered its verdict with two opinions. The majority judgment was authored by CJI B R Gavai (for himself and Justices Aravind Kumar, Satish Chandra Sharma, and K Vinod Chandran). Justice M M Sundresh delivered a separate, concurring judgment, agreeing with the conclusion and directions.

Background

The case was referred to a five-judge bench to resolve the issue of whether judicial officers could apply for direct recruitment as District Judges. The *Dheeraj Mor* judgment held that the “direct recruitment” quota was open only to those who were currently practising advocates with at least seven years of experience. This interpretation had led to the disqualification of many meritorious judicial officers across the country who had applied

for these posts, triggering this batch of appeals and review petitions.

Court’s Reasoning and Key Observations

- **Overruling Dheeraj Mor:** The Constitution Bench declared that the line of judgments from Satya Narain Singh (1985) to *Dheeraj Mor* (2020) was incorrect. These decisions had misread the Constitution and perpetuated injustice for decades by depriving meritorious judicial officers of an opportunity to compete.
- **Article 233(2) Re-interpreted:** The Court provided a new and definitive interpretation of Article 233(2). It held that the clause “A person not already in the service... shall only be eligible... if he has been for... seven years an advocate” is not a bar on judicial officers. Instead, it is a specific provision that enables advocates to be eligible, while the Constitution remains silent on the eligibility for in-service candidates, leaving it to be regulated by rules.
- **No “Quota” for Advocates:** The Court clarified that the 25% quota for direct recruitment is not an exclusive ‘quota for advocates’. It is a quota for direct recruitment, which is now open to both practising advocates and eligible judicial officers.
- **Violation of Article 14 (Equality):** The Court held that barring in-service candidates

from competing violates Article 14. It stressed that the object of selection is to “secure the best and the most suitable person for the job”. Denying talented judicial officers the chance to compete with advocates prevents the “best/ most meritorious” from being selected and is therefore detrimental to the judiciary.

- **New “Level Playing Field” Created:** To ensure fairness between the two streams (advocates and judicial officers), the Court, in its judgment, laid down a new eligibility criterion. It directed that in-service judicial officers will be eligible for direct recruitment only if they have a combined experience of seven years as an advocate and/or as a judicial officer.
- **Uniform Minimum Age:** The Court also set a uniform minimum age of 35 years, as on the date of application, for all candidates (advocates and judicial officers) applying for direct recruitment to the post of District Judge.
- **Concurring View (Sundresh, J.):** In his separate opinion, Justice Sundresh supported the majority view, adding that the Constitution’s “silence” on the eligibility of

judicial officers was deliberate. He argued that barring them from direct recruitment would violate the basic structure by infringing Article 14 (equality) and creating an unconstitutional “quota” for advocates.

Final Order and Directions

The Supreme Court overruled Dheeraj Mor and issued the following binding directions:

1. In-service judicial officers are eligible for direct recruitment as District Judges, provided they have a combined seven years of experience as an advocate and/or judicial officer.
2. The minimum age for all candidates (from the Bar or in-service) for direct recruitment shall be 35 years.
3. All State Governments are directed to amend their service rules, in consultation with High Courts, to align with this judgment within three months.

The judgment will apply prospectively and will not affect any appointments or selections already finalised (unless an interim order was passed in this regard by the court).

In Re: Summoning Advocates who give legal opinion or represent parties during the investigation of cases and related issues (2025 INSC 1275)

“...the power to summon under Section 175 & 179 [of the BNSS] is not the power to interfere with the privileged communications between a lawyer and client, as long as the Constitutional Courts sit”

CORAM: Chief Justice B R Gavai, Justice K Vinod Chandran, and Justice N V Anjaria

In a judgment delivered on **October 31, 2025**, a three-judge bench of the Supreme Court laid

down firm guidelines to protect the advocate-client privilege from overreach by investigative agencies. While highlighting the position of trust the Advocate occupies *vis-à-vis* his client, the Court held that an investigating officer (IO)

cannot summon a lawyer simply to get details about a case they are handling for an accused. The Court also ruled that “in-house counsel” are not entitled to this statutory privilege.

The judgment came in a *suo motu* petition initiated after a two-judge bench raised concerns about an advocate in Gujarat being summoned by the police under the Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS), in connection with a case where he was representing the accused.

In its judgment, the Court made the following key observations and issued binding directions:

- **Advocate-Client Privilege is Sacrosanct:** The Court held that the privilege under Section 132 of the Bhartiya Sakshya Adhiniyam, 2023 (BSA) is fundamental. An IO cannot issue a summons to an advocate who represents an accused just to “know the true details of the facts and circumstances of the case.” Such a summons is illegal and violates the client’s constitutional rights against self-incrimination and to effective legal representation.
- **New Safeguards for Summoning Lawyers:** While advocates are not immune from investigation if they are involved in a crime (that is, under the exceptions to Section 132), the Court created a new two-tier safeguard. An IO can summon an advocate only if:
 1. The summons explicitly states the specific facts that fall under the exceptions to privilege (for example, in furtherance of any illegal purpose).
 2. The IO has obtained prior *written approval* from a superior officer, not below the rank of a Superintendent of

Police, who has recorded their satisfaction in writing that an exception exists.

- **No *Vishaka*-style Guidelines Needed:** The Court declined the Bar’s request to create a *Vishaka*-style committee for peer review before a lawyer is summoned. It held that there is no “legislative vacuum”, as the statute (Section 132 BSA) is clear and advocates can challenge an illegal summons before the High Court (under Section 528 BNSS, akin to Section 482 CrPC).
- **Privilege on Documents v Digital Devices:** The Court clarified that the privilege does not protect the production of documents or digital devices in a lawyer’s possession (under Section 94 BNSS). However, it created a special safeguard for digital devices:
 - A lawyer must produce the device directly before the Court.
 - The Court will then oversee the search of the device in the presence of the lawyer and their client, ensuring that confidential data of other clients is not impaired.
- **In-House Counsel Not Entitled to Privilege:** The Court ruled that in-house counsel, who are full-time, salaried employees of a corporation, are not “Advocates” for Section 132 of the BSA. The Court held they lack the requisite independence and are influenced by the commercial strategies of their employer, and therefore cannot claim advocate-client privilege for communications with their employer.

The Supreme Court disposed of the *suo motu* petition with these directions and quashed the original summons that had triggered the case.

**Swacch Association, Nagpur v The State of Maharashtra & Ors
(2025 INSC 1199)**

“The public trust doctrine would thus extend in respect of even man-made or artificially created natural objects, waterbodies, lakes, wetlands, etc., which are drawn and created from nature or natural resources. It would, in the ultimate analysis pave the way to extend to ensure the availability of the right to a healthy environment and ecological balance recognised for the citizens under Article 21 of the Constitution”

CORAM: Chief Justice B R Gavai, Justice K Vinodchandran and Justice N V Anjaria

In a judgment dated 7 **October 2025**, a 3-judge bench of the Supreme Court dismissed a civil appeal challenging the Bombay High Court’s decision upholding the construction and beautification activities at the Futala Lake, Nagpur. The appellant, Swacch Association, a registered environmental body, had alleged that the installation of a musical fountain, a floating restaurant, an artificial banyan tree, and the construction of a multi-storey parking plaza and viewer’s gallery violated the Wetlands (Conservation and Management) Rules, 2017 and the public trust doctrine, arguing that Futala Lake was a protected wetland.

The Supreme Court, affirming the High Court’s view, held that Futala Lake is a man-made waterbody constructed in 1799 for irrigation and drinking purposes and hence falls outside the statutory definition of “wetland” under Rule 2(1) (g) of the 2017 Rules, which excludes human-made tanks created for irrigation or recreation. Consequently, the restrictions under Rule 4 of the Rules were held inapplicable.

The Court noted that all relevant permissions and No Objection Certificates (NOCs) had been obtained from competent authorities, including heritage and environmental bodies, and that the constructions were temporary, ecologically compliant, and aimed at public good and tourism promotion. However, the Supreme Court affirmed the certain directions given by the High Court, including that the respondent shall ensure that the spirit of Rule 4(2)(vi) of the 2017 Rules will be respected, and the structure of any permanent nature within the lake would not be undertaken. The recognition of the precautionary principle and the doctrine of public trust, in light of Articles 48-A and 51-A (g) of the Constitution, makes the directions given by the High Court an extension of judicial foresight.

While dismissing the appeal, the Bench reiterated the public trust doctrine, emphasising the State’s duty to conserve natural and artificial waterbodies for public use while allowing sustainable development. The Court endorsed the High Court’s directions to ensure that no permanent structures are erected within the lake and that the area remains clean, ecologically balanced, and environmentally safe. The appeal was accordingly dismissed, and all interim applications were disposed of.

The State of West Bengal & Others v M/s Santi Ceramics Pvt Ltd & Another (2025 INSC 1222)

“Extraordinary judicial intervention is warranted when systemic barriers prevent certain classes from accessing ordinary remedies, not when parties possess adequate means to vindicate their rights”

CORAM: Justice Surya Kant and Justice Joymalya Bagchi

In a judgment dated **13 October 2025**, a two-judge bench of the Supreme Court of India allowed the appeal filed by the State of West Bengal and set aside the Calcutta High Court’s decision that had directed the State to restore 28 bighas of land, including structures, to M/s Santi Ceramics Pvt Ltd. The Court held that the benefit of its earlier decision in *Kedar Nath Yadav v State of West Bengal* (2016), which ordered restoration of Singur land to displaced farmers, was meant exclusively for vulnerable agricultural communities and not for commercial entities. It observed that “Relief conceived to prevent impoverishment among the disadvantaged cannot extend to commercial enterprises with financial capacity and institutional sophistication”.

The Bench noted that Santi Ceramics had accepted full compensation in 2006 and raised no challenge for ten years, thereby waiving its rights. The Court ruled that judicial relief cannot be claimed by those

who neither pursued remedies nor were part of the original litigation, emphasising that “legal benefits flow from active pursuit of remedies, not passive opportunism”. Consequently, the appeal was allowed, the High Court’s orders were quashed, and Santi Ceramics was only permitted to remove or auction its remaining structures from the land.

The Supreme Court reaffirmed that the *Kedar Nath Yadav* ruling was a targeted social justice measure for marginalised cultivators, not a blanket restoration right for all landowners, especially commercial enterprises that had accepted compensation and chosen inaction for years. The Supreme Court allowed the appeal and set aside the orders of the Single Judge and Division Bench of the Calcutta High Court. The respondent’s writ petition seeking restoration of land was dismissed. The respondent was permitted, within three months, either to remove any remaining structures, plant, and machinery under supervision, or request the State to auction such assets and receive the proceeds after deducting auction costs.

Kimberley Club Pvt Ltd. v Krishi Utpadan Mandi Parishad & Ors (2025 INSC 1276)

“In tender matters, the court exercising judicial review does not sit in appeal over the decision of a tendering authority regarding disqualification of bid. Only in cases where such decision is dehors the terms of the NIT or is patently arbitrary would the Court exercise powers of judicial review and set aside such a decision”

Coram: Justice Surya Kant and Justice Joymalya Bagchi

In a judgment dated **31 October 2025**, the Supreme Court in a two-judge bench allowed a

civil appeal and set aside the order of the Allahabad High Court rejecting the appellant’s technical bid on the ground that the ‘*haisiyat praman patra*’ submitted by it had not been issued by the District Magistrate.

In this case, the dispute arose from a tender. The Notice Inviting Tender (NIT) prescribed a two-stage bidding process comprising a technical bid and a financial bid. One of the conditions, Clause 18 in the NIT, stated that the bidder must submit a '*haisiyat praman patra*' of a minimum of ₹10 crores with the technical bid.

The dispute arose when Appellant's technical bid was disqualified for the reason that the '*haisiyat praman patra*' was issued by a private architect and not a District Magistrate. Appellant approached the High Court by way of a writ petition claiming himself as the highest bidder. The High Court dismissed the writ petition, holding that the valuation certificate submitted by the appellant, having been issued by a private architect, could not be treated as a '*haisiyat praman patra*'. Hence, the appellant approached the Supreme Court.

The appellant argued that nothing in the NIT necessitated that '*haisiyat praman patra*' be issued by a District Magistrate. The court found that neither Clause 18 nor any other condition specifies that the '*haisiyat praman patra*' submitted by a prospective

bidder must be issued only by a District Magistrate in terms of the government notification.

The court also reaffirmed that the terms of an NIT must be unambiguous, and was unimpressed by the respondent's submission that such a condition was implied and followed by other bidders.

The Court also observed that since the respondent has not indicated in the tender conditions that the '*haisiyat praman patra*' was to be obtained from a District Magistrate as per the procedure in the government notification, it could not have rejected the certificate submitted by the appellant on the ground that it was not issued by a District Magistrate.

Consequently, the court directed the respondent to reconsider the technical bid of the appellant, and if it is satisfied that the valuation certificate submitted by the appellant meets the requirements of Clause 18 of the NIT, it shall accept the technical bid and after negotiations with the successful bidder, decide whether the remainder contract to be given to the appellant and allowed the appeal.

Denash v The State of Tamil Nadu (2025 INSC 1258)

“It is well settled that the Rules framed under a statute are intended to carry out the purposes of the Act and cannot travel beyond or be inconsistent with the parent legislation”

Coram: Justice Vikram Nath and Justice Sandeep Mehta

In a judgment dated **27 October 2025**, the Supreme Court allowed an appeal, setting aside the judgment of the High Court and allowing the interim custody of the confiscated vehicle to the appellant on terms and conditions, which the Special Court may impose.

In this present case, the appellant was the owner of the lorry, which was lawfully hired for transporting iron

sheets from M/s SS Steel and Power, Chhattisgarh, to Ashok Steels, Ranipet, Tamil Nadu. For this purpose, the vehicle had been assigned to four persons. During the course of transit, the police officers seized 6 kilograms of ganja from the four persons, and they were arrested. Subsequently, an FIR was registered, and the chargesheet was filed against the four accused persons. The appellant was not arraigned as an accused in the chargesheet.

Being aggrieved by the continued seizure of his transport vehicle, the appellant moved an

application before the Additional District Judge and later before the High Court. The High Court held that pursuant to the NDPS Rules, 2022, the Drug Disposal Committee alone had the authority and jurisdiction to adjudicate upon the disposal of the property, which included seized drugs as well as the conveyances and rejected the appeal.

On hearing the issue, the Supreme Court held that the power to determine whether or not a seized conveyance is liable to confiscation vests in the Special Court constituted under the NDPS Act and not in any administrative or executive authority, such as the Drug Disposal Committee.

The court also held that when the owner proves the absence of knowledge or connivance of the contraband, the Special Court is duty-bound to hear such a claim before deciding the fate of the seized vehicle, and the NDPS Act does not bar the Court from granting interim release of the vehicle if the circumstances warrant.

The court also ruled that the restrictive procedural framework of the NDPS Rules, 2022, must be read in harmony with the parent statute. Ultimately, the court allowed the interim release of the vehicle to the innocent owner.

Vijaya Kumari & Anr v Union of India (2025 INSC 1209)

“In recent jurisprudence, the Supreme Court has often recognised that ‘reproductive autonomy’ is part of the constellation of rights afforded to all people under Article 21 of the Constitution”

Coram: Justice B V Nagarathna and Justice K V Viswanathan

In a judgment delivered on **9 October 2025**, the Supreme Court ruled that the age restrictions prescribed under Section 4(iii)(c)(I) of the Surrogacy (Regulation) Act, 2021 (hereinafter, the Surrogacy Act), cannot be retrospectively and even retroactively applied to couples who had already initiated the surrogacy process by freezing embryos before the law came into force. Authorities were directed to grant eligibility certification to such couples, exempting them from the age bar, provided they fulfil all relevant statutory requirements.

This judgment arose from a batch of writ petitions filed by couples who had commenced fertility procedures before the implementation of the Surrogacy Act. The core challenge was the imposition of statutory age limits of 23 to 50 years for women and 26 to 55 years

for men, which, if enforced retrospectively, would frustrate the petitioners’ legitimate expectation of parenthood through surrogacy, despite extensive prior medical investment such as embryo creation and freezing. Petitioners argued that such retrospective operation was arbitrary, hostile to vested rights, and lacked any rational nexus to the stated object of surrogacy regulation.

While analysing the statutory scheme, the Supreme Court found that the freezing of embryos before the Act’s commencement was seen as the crystallisation of parental intent, creating a vested right that ought not be defeated by subsequent legislation. The bench further emphasised that reproductive autonomy and parenthood are facets of the right to privacy and dignity under Article 21 of the Constitution, and restrictions affecting these rights must have a rational nexus to their purpose and not operate arbitrarily. The Court,

thus, granted relief to the petitioners based on their unique circumstances, protecting their vested rights to proceed with surrogacy processes already underway before the law imposed age caps.

Ultimately, the Supreme Court held that age restrictions under the Act are to be applied

prospectively and cannot divest couples of their right to parenthood when the surrogacy process had lawfully commenced before its enforcement. All authorities were directed to process certification for such couples, subject to the satisfaction of other statutory requirements.

Rajendra Bihari Lal and Anr v State of Uttar Pradesh and Ors (2025 INSC 1249)

“The criminal law cannot be allowed to be made a tool of harassment of innocent persons, allowing prosecuting agencies to initiate prosecution at their whims and fancy, based on completely incredulous material”

Coram: Justice J B Pardiwala and Justice Manoj Misra

The Supreme Court of India, in a judgment delivered on **17 October 2025**, heard a batch of petitions and appeals challenging multiple FIRs filed in Uttar Pradesh, primarily alleging offenses under the U.P. Prohibition of Unlawful Conversion of Religion Act, 2021 (hereinafter, U P Conversion Act) against the Vice-Chancellor and officials of Sam Higginbottom University of Agriculture, Technology and Sciences (SHUATS). The Court allowed the appeals, quashing the majority of the FIRs.

Several FIRs were registered in Fatehpur district of U P, alleging “mass religious conversions” of Hindus to Christianity through undue influence and coercion, often citing events at the Evangelical Church of India. The complaints were largely filed by third parties, such as a leader of the Vishwa Hindu Parishad, and not the alleged victims or their relatives.

The Court conducted a detailed scrutiny of the FIRs and investigation records, finding:

- Under the unamended Section 4 (applicable to these FIRs), only the “aggrieved person” or close relatives (by blood, marriage, or adoption)

were competent to file a complaint. The Court held that an FIR by an unrelated third party was non est and quashed it on this ground. The special law’s procedural scheme was held to prevail over general CrPC provisions to weed out vexatious complaints by busybodies.

- Some FIRs were found to be cyclostyled replicas of the first, relating to the same incident. Citing precedents like T T Antony and Babubhai, the Court quashed these as being impermissible subsequent FIRs related to the same core cause of action.
- The Court noted glaring deficiencies, including inordinate delay, contradictory witness statements, and mechanically reproduced narratives, indicating a lack of bona fides and investigative mala fides. The evidence primarily showed faith-based gatherings or charity work, which is not criminalised under the Act.

Thus, the Supreme Court allowed the appeals and quashed the majority of the FIRs, ruling that their continuation would amount to a travesty of justice. The Court clarified that the filing of a charge sheet does not deprive the court of the power to quash proceedings in exceptional cases.

Jane Kaushik v Union of India & Ors (2025 INSC 1248)

“There is no gainsaying that the Union of India and the States need to do a lot more to create mechanisms for the transgender persons to translate their rights into reality... The community continues to face discrimination and marginalisation, with a scarcity of healthcare, economic opportunities and non-inclusive educational policies adding to their struggles”

CORAM: Justice J B Pardiwala and Justice R Mahadevan

In a judgment delivered on **17 October 2025**, the Supreme Court issued binding directions to the Union and all State/UT governments to immediately implement the Transgender Persons (Protection of Rights) Act, 2019. The Court, expressing its dismay at the “grossly apathetic attitude” and “administrative lethargy” of the governments, declared that their failure to create mandatory grievance redressal mechanisms amounts to “omissive discrimination” and has left the 2019 Act as an “empty formality.”

The petition was filed by Ms Jane Kaushik, a transgender woman, who was terminated from one private school and denied employment by another. She found herself without any effective legal remedy as the grievance mechanisms mandated by the 2019 Act, such as Complaint Officers and Transgender Protection Cells, had not been established.

Court’s Reasoning and Key Observations

- **Act is a “Dead Letter”:** The Court held that despite the 2019 Act and 2020 Rules, transgender persons’ rights “remain only an empty formality.” The “persistent inaction” by the State has reinforced discrimination and left the community without protection.
- **“Omissive Discrimination”:** The judgment held that the State’s failure to act and implement

the law is not a mere lapse but a form of omissive discrimination. By not creating the statutory mechanisms for redressal, the State has violated the fundamental rights of the transgender community.

- **Duty of Private Establishments:** The Court affirmed that the 2019 Act applies “horizontally”, meaning private establishments (like the respondent schools) have a binding legal duty to prevent discrimination and create a safe working environment.
- **“Reasonable Accommodation” is a Positive Duty:** The Court read the principle of “reasonable accommodation” into the 2019 Act, holding it to be a positive obligation on all establishments, and not a matter of charity.
- **Finding on Discrimination:** The Court found that the second school’s act of revoking an offer letter after discovering the petitioner’s gender identity was a clear case of “mala fide” discrimination.

Binding Directions and Final Order

To remedy the “alarming” state of affairs, the Court issued a continuing mandamus and a series of binding directions to the Union and all States/UTs, to be complied with within three months:

1. **Complaint Officers:** Ensure every establishment (public and private) designates a Complaint Officer as mandated by Section 11 of the 2019 Act.

2. **Grievance Redressal:** Designate the State Human Rights Commissions (SHRCs) as the default authority to handle appeals against the decisions of establishments' Complaint Officers, until a formal appellate mechanism is created.
3. **Transgender Protection Cells:** Set up Transgender Protection Cells in every district under the District Magistrate and at the state level under the Director-General of Police.
4. **Welfare Boards:** Constitute a Welfare Board for transgender persons in every State/UT.
5. **National Helpline:** Set up a dedicated national toll-free helpline to report violations of the 2019 Act.

Advisory Committee Formed:

The Court also constituted a high-level Advisory Committee, chaired by former Delhi High Court Judge, Justice Asha Menon, to formulate a comprehensive national Equal Opportunity Policy. The Committee is to submit its report within six months.

Compensation Awarded:

The Court held this to be an appropriate case for awarding public law compensation, directing:

- ₹50,000 to be paid by the Second School for its discriminatory act.
- ₹50,000 each to be paid by the Union of India, the State of UP, and the State of Gujarat for their "inaction and lethargy".

P Radhakrishnan & Another v Cochin Devaswom Board & Others (2025 INSC 1183)

"The appellants could not have been rendered worse off in their own writ petition"

CORAM: Justice Dipankar Datta and Justice K V Viswanathan

In a judgment dated **6 October 2025**, a two-judge bench of the Supreme Court partly allowed the appeal filed by the appellants, setting aside certain directions issued by the Kerala High Court as being beyond the scope of the writ petition.

In this case, the Cochin Devaswom Board had allotted 13.5 cents of land in Thrissur to the Chinmaya Mission Educational and Cultural Trust in the 1970s for constructing a hall for religious and cultural purposes. The license fee was initially fixed at ₹101 per annum, later revised to ₹227.25 per annum. In 2014, the Board unilaterally enhanced the annual license fee to ₹1,50,000, and later

demanded arrears of ₹20,46,788. Aggrieved, the appellants filed a writ petition before the Kerala High Court, challenging the enhancement and related proceedings.

The High Court upheld the Board's decision to enhance the license fee. However, it went further and directed that:

- The Board should fix the license fee in light of *T Krishnakumar v Cochin Devaswom Board* (2022).
- The Chief Vigilance Officer (Superintendent of Police) of the Board should conduct an enquiry into the lease transaction with the appellants.

The appellants contended before the Supreme Court that these additional directions were beyond the scope of the writ petition and violated natural justice.

The Supreme Court partly allowed the appeal and expunged a few portions of the High Court's order. The Supreme Court observed that:

- While the High Court was justified in examining the validity of the license fee enhancement, it had exceeded its jurisdiction

by issuing directions that were neither prayed for nor necessary for adjudication.

- The appellants were not put on notice before the impugned directions were made, and were effectively rendered worse off in their own writ petition.
- That judicial orders must be confined to the pleadings and that any suo motu expansion of issues without hearing affected parties violates principles of natural justice.

K Kirubakaran v State of Tamil Nadu (2025 INSC 1272)

“The criminal law is, thus, a manifestation of the sovereign will of the society. However, the administration of such law is not divorced from the practical realities. Rendering justice demands a nuanced approach”

Coram: Justice Dipankar Datta and Justice Augustine George Masih

In a judgment dated **28 October 2025**, the Supreme Court in a two-judge bench allowed an appeal and invoked powers under Article 142 of the Constitution of India to quash the criminal proceedings against the appellant, including the conviction and sentence.

In this case, the appellant was convicted of offences under Section 366 IPC, 1860, Section 2 POCSO Act, 2012 and sentenced to 5 years and 10 years of imprisonment. While the appeal was pending before the High Court of Madras, the appellant married the victim. On the direction of the court, the Tamil Nadu State Legal Services Authority ascertained the well-being of the victim and filed an affirmative report that the appellant and his wife had been blessed with a male child. Also, the wife filed an affidavit wishing to live a happy and peaceful life with the appellant.

The court observed that a crime is not merely a wrong against an individual but against society as

a whole, and it wounds the collective conscience of society. However, considering the practical realities, the court proceeded to balance the competing interests of justice and invoked Art 142 of the constitution to do “complete justice” and to avoid rigid application of law.

The court, after considering the peculiar nature of the crime, observed that the crime was not the result of lust but love and held that the continuation of the criminal proceedings and the appellant's incarceration would disrupt this familial unit and cause irreparable harm to the victim and the infant child. Therefore, the court quashed the criminal proceedings against the appellant with a specific condition that the appellant shall not desert his wife and child and also shall maintain them for the rest of their life with dignity.

The court also held that the judgment shall not be treated as a precedent for any other case, as the order has been rendered in the unique circumstances of the case.

K S Shivappa v Smt K Neelamma
(2025 INSC 1195)

“...a voidable transaction executed by the guardian of the minor can be repudiated and ignored by the minor within time on attaining majority either by instituting a suit for setting aside the voidable transaction or by repudiating the same by his unequivocal conduct”

CORAM: Justice Pankaj Mithal and Justice Prasanna B Varale

In a judgment dated **7 October 2025**, the Supreme Court, in a two-judge bench, allowed a civil appeal, setting aside the judgment of the High Court and First Appellate Court and restoring the decision of the Trial court that minors can repudiate the voidable transactions executed by the guardian, without filing the suit for cancellation, by their unequivocal conduct.

In this case, the father, the natural guardian of the minor, had transferred the property of the minor by way of a sale deed. The question before the court was whether the minors must have filed a suit of cancellation to set aside the transaction made by their natural guardian, upon attaining majority.

The court emphasised that the prior permission of the court is a *sine qua non* for a guardian to transfer

the property of the minor, and the natural guardian has no right to sell, mortgage, etc, without the permission of the court, and such transactions are voidable at the option of the minor, on attaining majority.

The court also held that it is not mandatory that the minor, on attaining majority, needs to institute a suit of cancellation for repudiating the voidable transaction executed by the natural guardian and held that he can repudiate either expressly by filing a suit for the cancellation or impliedly by his unequivocal conduct, namely by transferring the property himself within the time prescribed.

The court observed that the sale of property by the individual upon attaining majority, which had earlier been sold by the natural guardian without the prior permission of the court, constituted a valid repudiation by conduct.

M/s Lancor Holdings Limited v Prem Kumar Menon & Ors
(2025 INSC 1277)

“The very basis and public policy underlying the process of arbitration is that it is less time-consuming and results in speedier resolution... If that premise is not fulfilled by an unworkable arbitral award... such an award would not only conflict with the public policy of India but would also be patently illegal”

CORAM: Justice Sanjay Kumar and Justice Satish Chandra Sharma

In a judgment delivered on **31 October 2025**, a two-judge bench of the Supreme Court set aside

an arbitral award that was pronounced after an inordinate and unexplained delay of nearly four years. The Court held that while delay alone is not a ground to set aside an award, in this case, the “pointless delay” resulted in a “rudderless”,

“unworkable”, and “perverse” award that failed to resolve the dispute, thus rendering it patently illegal and in conflict with the public policy of India.

The Court invoked its powers under Article 142 of the Constitution to provide a final resolution to the 16-year-old dispute, stating that relegating the parties to fresh arbitration would be a “travesty of justice.”

The dispute arose from a 2004 Joint Development Agreement (JDA) between Lancor Holdings (appellant) and the Menon brothers (respondents). After constructing a building, the appellant company executed sale deeds for its 50% share in its own favour using a photocopy of a power of attorney. The respondents disputed the completion of the building and initiated arbitration. The arbitrator, who reserved the award on July 28, 2012, pronounced it almost four years later on March 16, 2016.

Court’s Reasoning and Key Observations

- **On Inordinate Delay:** The Court held that (in the pre-Section 29A era) undue delay, while not a specific ground under Section 34, can vitiate an award if it is “explicit and adversely reflects on the findings”. The Court found that the four-year delay, for which the arbitrator did not explain, led to a “demonstrable indecisiveness” and “total non-application of mind”, as the arbitrator clearly forgot the facts and arguments.
- **A “Patently Illegal” and “Unworkable” Award:** The Court found the award to be against public policy because it failed to

achieve the primary purpose of arbitration: dispute resolution. The arbitrator declared the company’s sale deeds illegal but then, in a state of “vacillation”, refused to grant any consequential or equitable relief (like compensation), leaving the parties “high and dry” and forcing them to “initiate a fresh round of arbitration/litigation”.

- **Invoking Article 142 for “Complete Justice”:** The Court held that simply setting aside the award would be a “mockery of the process”, as the parties’ positions had been “irrevocably” altered by the arbitrator’s interim orders (the respondents had already received their 50% share of the building in 2010). Stating that it was “not possible to turn back the clock”, the Court used Article 142 to end the litigation.

Final Order and Directions

Invoking its powers under Article 142 to do “complete justice”, the Supreme Court allowed the appeal and substituted the arbitrator’s award with its own:

1. The Court penalised the appellant company (Lancor) for its “patent illegality” in executing the sale deeds.
2. Lancor was directed to pay ₹10 crores to the respondents (comprising a ₹6.82 crore forfeiture of its security deposit and ₹3.18 crore as compensation).
3. Upon full payment of this amount, the Court validated the disputed sale deeds, and Lancor was held to be entitled to take possession of its 50% share in the building, thereby finally concluding the 16-year-old dispute.

Vinishma Technologies Pvt Ltd v State of Chhattisgarh (2025 INSC 1182)

“The State while it enjoys the freedom to prescribe the conditions in the tender, cannot exercise that power in a manner that infringes upon constitutional guarantees, by closing the market to outsiders without just cause”

Coram: Justice Sanjay Kumar and Justice Alok Aradhe

In the judgment delivered on **6 October 2025**, a two-judge bench addressed the validity of a restrictive tender condition imposed by the State of Chhattisgarh for the supply of sports kits to government schools.

In the present case, Vinishma Technologies Pvt Ltd challenged a tender condition issued by the State of Chhattisgarh for the supply of sports kits to government schools, which required bidders to have supplied goods worth at least ₹6 crore to state agencies in Chhattisgarh in the previous three years. The company argued before the Supreme Court that this eligibility criterion was arbitrary and created an artificial barrier, excluding competent suppliers from outside the state and thus violating the constitutional principle of equality under Article 14 and the right to practice any profession or carry on trade under Article 19(1)(g). The State defended its criteria, invoking concerns about local logistics and timely delivery in a Maoist-affected region; however, the Court noted that the supply of sports kits does not involve security-sensitive operations and that local challenges could be addressed by partnering with local logistics agencies.

The Supreme Court analysed the impugned condition through the doctrine of “level playing field,” a legal principle derived from Articles 14

and 19(1)(g), which requires equal opportunity for all similarly situated bidders and prohibits the government from erecting artificial barriers in public procurement. The bench held that the restriction had no rational nexus to the tender’s legitimate object that is securing affordable and quality sports kits for school children, since a supplier’s financial strength or technical competence could be established by performance in other states or with central government agencies. By tying eligibility solely to prior experience within Chhattisgarh, the court held that the impugned tender condition was arbitrary, unreasonable, and discriminatory, and offended the mandate of Article 14 and Article 19(1)(g) of the Constitution of India.

Further, the Court emphasised that the effect of closing the market to outsiders was to restrict competition and potentially foster cartelisation, which is detrimental both to public interest and procurement quality. It held that judicial review of tender criteria is justified where such conditions lack fairness or rationality and operate discriminatorily.

Consequently, the Supreme Court declared the tender condition arbitrary, discriminatory and unconstitutional, and quashed both the High Court’s orders and the restrictive tender notices. The State was permitted to issue fresh tenders, provided they complied with constitutional guarantees and the principles of fair competition.

State of Kerala v Suni @ Sunil
(2025 INSC 1260)

“It is well settled that it is not permissible for the Court to apply the doctrine of casus omissus where the language of a statute is clear and unambiguous, as the words used by the statute speak for themselves and it is not the function of the Court to add words or expressions merely to suit what the Court thinks is the intent of the legislature”

Coram: Justice Sanjay Kumar and Justice Alok Aradhe

In a judgment delivered on **28 October 2025**, the Supreme Court clarified the interpretation and procedure related to offences under Section 195A of the Indian Penal Code, 1860 (hereinafter, IPC), which deals with threatening a person to give false evidence. This offence, introduced in 2006, is cognizable, allowing the police to take immediate action upon receiving information of its commission.

The Court examined how Section 195A IPC aligns with provisions under Section 195(1)(b)(i) of the Code of Criminal Procedure, 1973 (hereinafter, CrPC), which restricts taking cognisance of certain offences related to false evidence unless a complaint is made by a court or an officer authorised by the court. The judgment emphasised that the offence under Section 195A IPC is distinct from others like Sections 193 to 196 IPC, and possession of

complaints from witnesses or other persons is allowed to initiate action, ensuring quicker access to justice for threatened witnesses.

The Court held that the Kerala High Court and the Karnataka High Court had erred in requiring compliance with the restrictive procedure under Section 195(1)(b)(i) CrPC for offences under Section 195A IPC. The Supreme Court set aside orders granting bail on this procedural ground and restored earlier cognisance orders.

The judgment resolves conflicting High Court views and confirms that police can register FIRs and start investigations immediately upon receiving information about offences committed under Section 195A IPC, without waiting for a formal court complaint, safeguarding the efficacy of criminal justice. Thus, the Supreme Court upheld the cognizable nature of Section 195A IPC offences and clarified the appropriate procedural pathway.

Sankar Padam Thapa v Vijaykumar Dineshchandra Agarwala
(2025 INSC 1210)

“...a trust does not have a separate legal existence of its own, making it incapable of suing or being sued”

CORAM: Justice Ahsanuddin Amanullah and Justice Prashant Kumar Mishra

In a judgment dated **9 October 2025**, the Supreme Court in a two-judge bench dealt with a central question as to whether a complaint under

Section 138 of the Negotiable Instruments Act, 1881 (NI Act) is maintainable against a trustee or chairman of a trust when the trust itself is not made an accused, particularly when the dishonoured cheque was issued on behalf of the trust.

The Court held that a trust is not a juristic person and cannot sue or be sued in its own name. Under the Indian Trusts Act, 1882, obligations relating to trust property rest with the trustees, who are responsible for maintaining and defending suits concerning the trust. Therefore, a trust lacks independent legal status, unlike a company or a firm.

Consequently, the Court ruled that a complaint under the NI Act is maintainable against a trustee who signs a cheque on behalf of the trust, without the need to implead the trust as an accused. The judgment clarified that the trustee-signatory

bears personal liability for acts done on behalf of the trust under Section 141 of the NI Act. The Supreme Court set aside the Meghalaya High Court's judgment, which had quashed the complaint for non-joinder of the trust, and restored Criminal Case No. 44(S)/2019 to the trial court for continuation in accordance with law.

The Court also overruled contrary views of several High Courts (Kerala, Bombay, Madras, Orissa, Gujarat, and Calcutta) that had treated trusts as juristic persons, reaffirming that only trustees are liable and answerable for the acts of a trust.



Training Hub



10 October 2025: The Training Cell organised a training programme on “Working of Courts” for shorthand knowing staff posted in the Court Masters Wing and Registrar Courts. The programme included sessions on Understanding of Court Procedures, Coordination with the Bench and the Registry, and Improving the Accuracy of Recording and Preparation of Proceedings and Digital Tools such as ICMIS and FASTER



17 October 2025: The Training Cell conducted an Information and Communication Technology (ICT) Training Programme for officials of the Registry. The objective was to strengthen digital literacy and operational efficiency of Registry staff through practical exposure to tools and systems including ICMIS, e-Filing System, SCI Website, SUPNET, SAFE, and CARE guidelines



29 October 2025: The Training Cell, in collaboration with the Gender Sensitization and Internal Complaints Committee (GSICC), organised a training programme on “Gender Sensitisation” for the Junior Court Attendants

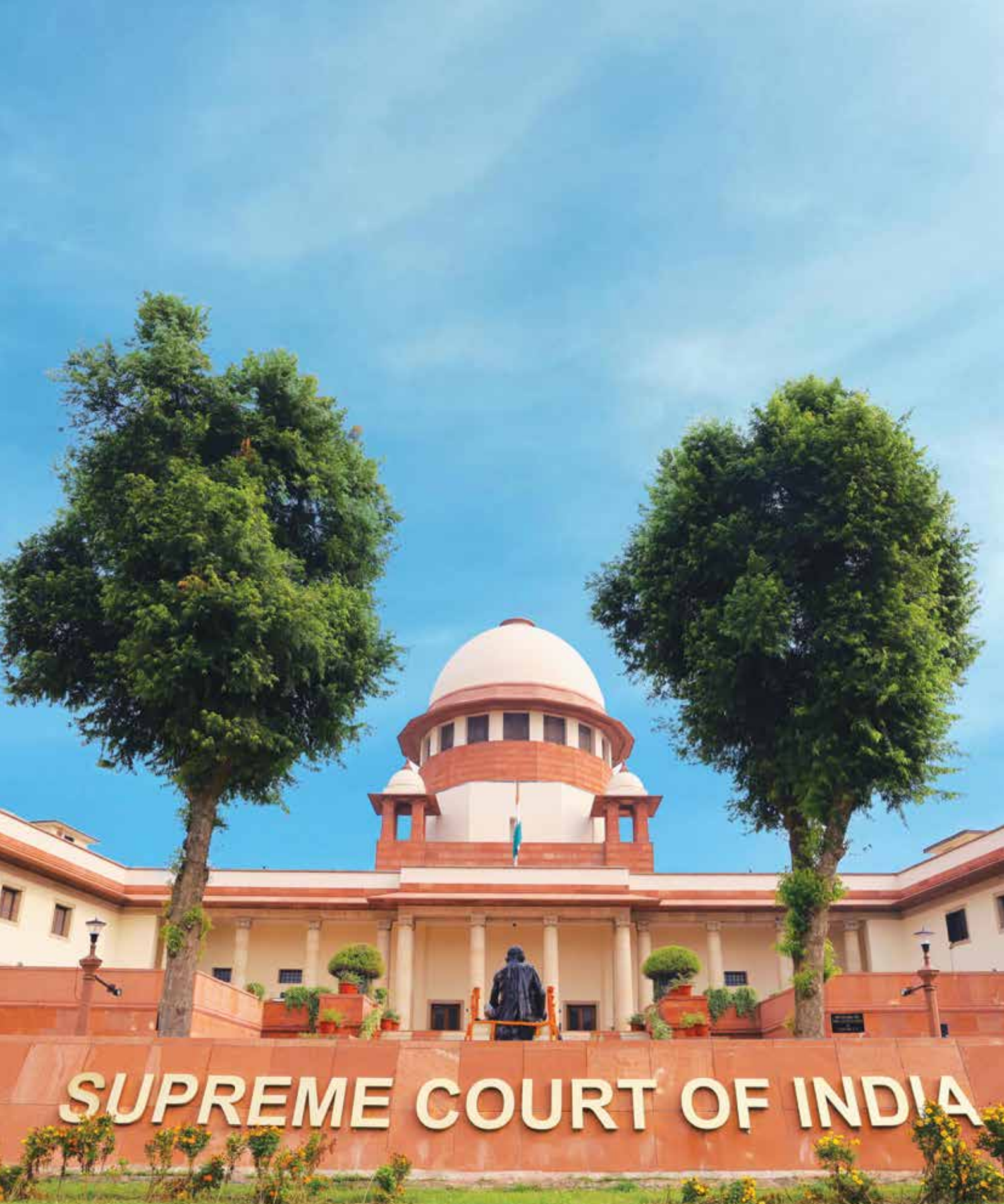
Bid Adieu



Shri Vijay Pal, a native of Bulandshahr, Uttar Pradesh, retired from service as Supervisor (R) on 31 October 2025, after an association spanning more than 36 years with the institution. Shri Pal began his career on 15 June 1989, marking the start of a journey characterised by sincerity, perseverance, and a deep sense of responsibility. Over the years, he rendered invaluable service through his diligence and commitment, contributing significantly to the smooth functioning of his section. Reflecting on his journey, Shri Pal expresses heartfelt gratitude to the institution, his peers, and his family for their support and encouragement throughout his career. As he embarks on this new chapter of life, he looks forward to spending more time with his loved ones, cherishing the memories and experiences gathered during his long and fulfilling service.



Shri Ram Vir concludes a long and dedicated journey with the Supreme Court of India, retiring from service as an Usher. A native of Delhi, he began his career in the institution on 27 July 1988, when he joined as an Attendant. Over the years, through his sincerity and commitment, he rose steadily in service, earning the respect and affection of all those he worked with. He gratefully acknowledges the encouragement, guidance, and goodwill that enriched his years in the Court. As he steps into retirement, he expresses heartfelt gratitude to his colleagues and the institution for their constant support and looks forward to this new chapter of life with contentment and pride.



Supreme Court of India

Tilak Marg, New Delhi-110001

© Supreme Court of India, 2025

Designed by

Design Team, Editorial, Supreme Court of India